

CONSENT ORDER

This order is made by the investigation committee upon the respondent's acceptance of a proposal by the committee under section 73(1) of the *Professional Governance Act*.

Between

Association of BC Forest Professionals

("ABCFP")

And

Francis JOHNSON, RPF #4890

("JOHNSON")

Background

1. JOHNSON has been licensed as a Registered Professional Forester ("RPF") since 2007.
2. ESK'ETEMC FIRST NATION (EFN) is the holder of First Nation Woodland Licence (FNWL) N2K and Community Forest Agreement (CFA) K1C.
3. EFN owns Alkali Resource Management Ltd. (ARM). ARM manages FNWL N2K and CFA K1C for EFN, including timber harvesting activities.
4. In 2018, JOHNSON was employed as a Planning Forester for ARM.
5. In January 2019, ARM harvested timber on FNWL N2K Cutting Permit (CP) 19 and CFA K1C CP 94 near Williams Lake contrary to the General Wildlife Measures (GWM) for Mule Deer Winter Range (MDWR) without applying for an exemption,

as required under Government Action Regulation Order U-5-002 and section 69 of the Forest Planning and Practices Regulation (FPPR).

6. Portions of FNWL N2K and CFA K1C are within the asserted territory of the Stswecem'c Xgat'tem First Nation (SXFN)
7. Between 2017 and 2018, EFN and ARM did not refer proposed harvesting and road building activities with SXFN as required under section 4.8.3 of ARM's FSP, contrary to FRPA section 21(1).
8. In July 2018, ARM commenced harvesting on CP 98 without referring activities to affected aboriginal groups as committed to in ARM's FSP.
9. In December 2019, a complaint was submitted to the Ministry of Forest Compliance and Enforcement Branch (CEB) regarding ARM's failure to consult with aboriginal groups who assert Traditional Territory with CFA K1C. CEB investigated the matter, and a MOF statutory decision maker determined that EFN contravened FRPA section 21(1) and FPPR section 69.
10. In January 2020, JOHNSON wrote SXFN, apologized for the referral error, and identified improvements in internal processes to prevent a recurrence.
11. In February 2021, the *Professional Governance Act* replaced the *Foresters Act*, and the Investigation Committee assumed the statutory authority of the Complaints Resolution Committee under the revised bylaws of the ABCFP.
12. On March 9, 2022, the ABCFP received a complaint against JOHNSON related to the failure to provide referrals and consultation with SXFN in relation to ARM's timber harvesting activities. In addition, the complaint included concerns that JOHNSON was responsible for inappropriate or unauthorized timber harvesting of Mule Deer Winter Range (MDWR) contrary to the U-5-002 Order and Old Growth Management Areas (OGMAs).

13. On May 24, 2022, the ABCFP Investigation Committee authorized an investigation into the matter.
14. The investigation found that JOHNSON signed several Site Plans (SPs), which did not include references or referrals to the SXFN.
15. The investigation found that JOHNSON signed SPs contrary to the requirements outlined in the U-5-002 Order.
16. Following the investigation, the investigator panel issued an investigation report for the Investigation Committee's review and consideration, and JOHNSON was given an opportunity to respond to it.
17. On September 25, 2023, the Investigation Committee reviewed the investigation report and JOHNSON's response and agreed he had contravened the Code of Ethics in ABCFP's former Bylaws 11.3.1, 11.3.3, 11.5.1, 12.5.1, and 12.6.1 under the *Foresters Act*.¹

¹ Former bylaws repeated here for convenience. Now covered by FPBC bylaw 9.

11.3.1 To advocate and practice good stewardship of forest land based on sound ecological principles to sustain its ability to provide those values that have been assigned by society.

11.3.3 To have regard for existing legislation, regulation, policy and common law; and to seek to balance the health and sustainability of forests, forest lands, forest resources, and forest ecosystems with the needs of those who derive benefits from, rely on, have ownership of, have rights to, and interact with them.

11.5.1 To act conscientiously and diligently in providing professional services.

12.5.1 Members exercise due diligence by being prudent and doing all work with constant and careful attention.

12.6.1 Members demonstrate stewardship by balancing present and future values against the capacity of the land to provide for those values.

Admissions

18. JOHNSON admits, under section 73(3)(b) of the *Professional Governance Act*, that:
- (a) He completed SPs for salvage logging that were inconsistent with U-5-002 GAR Order and did not pursue the required exemption prior to harvest resulting in a contravention of former Bylaw 11.3.1, 11.3.3, and 12.6.1.
 - (b) In the course of completing SPs for fuel management treatments, he failed to ensure appropriate referrals to the SXFN were conducted, thereby contravening former Bylaws 11.3.3, 11.5.1 and 12.5.1.

Disposition

19. JOHNSON consents to the Investigation Committee making the following orders:
- (a) That JOHNSON is reprimanded under section 75(6)(a) of the *Professional Governance Act*;
 - (b) That JOHNSON must complete ABCFP Code to Ethics and Professional Conduct training by February 28, 2025;
 - (c) That JOHNSON must complete the University of the Fraser Valley's course on Fundamentals of Records Management (RM01) or an alternative course acceptable to the Audit and Practice Review Committee, under section 75(6)(f) of the *Professional Governance Act*; by November 30, 2025;
20. JOHNSON acknowledges that this consent order has the same effect as an order made by a panel of the Discipline Committee of the ABCFP after a hearing under section 75 of the *Professional Governance Act*.
21. JOHNSON acknowledges that the ABCFP will be required under ABCFP Bylaw 13-7 to notify the public of this consent order by publishing a discipline digest on the ABCFP's website and in its newsletter, or other public communications that will

contain a summary of the circumstances of this case, including the full text or summary of this order.

22. JOHNSON acknowledges that he has read this consent order, fully understands its terms, and has voluntarily accepted it for the purpose of fully and finally resolving all matters arising out of or related to the Complaint.
23. JOHNSON understands that he has the right to seek independent legal advice and has been encouraged to seek such advice before signing this consent order.

This consent order has been proposed by the Investigation Committee and is accepted by JOHNSON effective this 29th day of January 2025.



Bruce Blackwell, RPF
Chair, Investigation Committee



Francis JOHNSON, RPF #4890



Witness